

COMMITTEE ON EDUCATION
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2621
(Reference to printed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Title 15, chapter 7, article 4, Arizona Revised
3 Statutes, is amended by adding section 15-768, to read:

4 15-768. Pupils residing in unorganized territory; definitions

5 A. THE PARENT OF A PUPIL WHO RESIDES IN AN UNORGANIZED TERRITORY
6 MAY CONTACT AN ADJOINING SCHOOL DISTRICT TO REQUEST A CHILD FIND
7 SCREENING, A SPECIAL EDUCATION EVALUATION OR ENROLLMENT OF THE PUPIL IN
8 THE SCHOOL DISTRICT. A SCHOOL DISTRICT THAT IS CONTACTED PURSUANT TO THIS
9 SUBSECTION IS RESPONSIBLE FOR ALL CHILD FIND ACTIVITIES FOR THAT PUPIL.
10 IF A PARENT OF A PUPIL WHO IS A CHILD WITH A DISABILITY AS DEFINED IN
11 SECTION 15-761 CONTACTS A SCHOOL DISTRICT PURSUANT TO THIS SUBSECTION TO
12 REQUEST ENROLLMENT OF THE PUPIL IN THE SCHOOL DISTRICT, THE SCHOOL
13 DISTRICT IS RESPONSIBLE FOR PROVIDING A FREE APPROPRIATE PUBLIC EDUCATION
14 TO THE PUPIL.

15 B. EACH PROGRAM THAT PROVIDES EARLY INTERVENTION SERVICES PURSUANT
16 TO PART C OF THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT (20 UNITED
17 STATES CODE SECTIONS 1401 THROUGH 1485) TO PUPILS WHO RESIDE IN
18 UNORGANIZED TERRITORIES SHALL INITIATE THE PROCESS FOR TRANSITIONING THE
19 PUPILS FROM PART C TO PART B OF THE INDIVIDUALS WITH DISABILITIES
20 EDUCATION ACT BY CONTACTING THE COUNTY SCHOOL SUPERINTENDENT OF THE COUNTY
21 IN WHICH THE PUPIL RESIDES WHEN THE PUPIL IS AT LEAST THIRTY MONTHS BUT
22 FEWER THAN THIRTY-THREE MONTHS OLD. NOT LATER THAN FIVE BUSINESS DAYS
23 AFTER A PROGRAM CONTACTS A COUNTY SCHOOL SUPERINTENDENT PURSUANT TO THIS
24 SUBSECTION, THE COUNTY SCHOOL SUPERINTENDENT SHALL ASSIGN AN ADJOINING
25 SCHOOL DISTRICT TO BE RESPONSIBLE FOR CONDUCTING A FULL AND INDIVIDUAL
26 INITIAL EVALUATION OF THE PUPIL ON OR BEFORE THE PUPIL'S THIRD BIRTHDAY
27 AND SHALL NOTIFY THE SCHOOL DISTRICT, THE PROGRAM AND THE PUPIL'S PARENT
28 OF THE ASSIGNMENT. THE COUNTY SCHOOL SUPERINTENDENT SHALL ASSIGN THE
29 ADJOINING SCHOOL DISTRICT THAT IS GEOGRAPHICALLY CLOSEST TO THE PUPIL'S
30 RESIDENCE.

31 C. IF THE SCHOOL DISTRICT THAT IS ASSIGNED PURSUANT TO SUBSECTION B
32 OF THIS SECTION CONDUCTS AN EVALUATION OF THE PUPIL AND DETERMINES THAT:

33 1. THE PUPIL IS ELIGIBLE FOR SPECIAL EDUCATION AND RELATED SERVICES
34 UNDER PART B OF THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT, THE
35 PUPIL'S PARENTS MAY REQUEST ENROLLMENT OF THE PUPIL IN THE SCHOOL DISTRICT
36 THAT IS ASSIGNED PURSUANT TO SUBSECTION B OF THIS SECTION OR IN A
37 DIFFERENT ADJOINING SCHOOL DISTRICT. ON RECEIPT OF A REQUEST FOR
38 ENROLLMENT PURSUANT TO THIS SUBSECTION, A SCHOOL DISTRICT SHALL PREPARE A
39 CERTIFICATE OF EDUCATIONAL CONVENIENCE APPLICATION FOR THE PUPIL AS

1 PRESCRIBED BY SECTION 15-825 AND OFFER A FREE APPROPRIATE PUBLIC EDUCATION
2 TO THE PUPIL.

3 2. THE PUPIL IS NOT ELIGIBLE FOR SPECIAL EDUCATION AND RELATED
4 SERVICES UNDER PART B OF THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT
5 AND THE PUPIL IS SCHOOL-AGED, THE PUPILS PARENTS MAY REQUEST ENROLLMENT OF
6 THE PUPIL IN ANY ADJOINING SCHOOL DISTRICT PURSUANT TO SECTION 15-825.

7 D. A PUPIL WHO RESIDES IN AN UNORGANIZED TERRITORY AND WHO EITHER
8 IS PARENTALLY PLACED IN A PRIVATE SCHOOL OR ATTENDS A HOMESCHOOL:

9 1. RETAINS THE RIGHTS ESTABLISHED BY 20 UNITED STATES CODE SECTION
10 1412, INCLUDING THE RIGHTS TO BE IDENTIFIED, LOCATED AND EVALUATED FOR
11 ELIGIBILITY UNDER THE PART B OF THE INDIVIDUALS WITH DISABILITIES
12 EDUCATION ACT.

13 2. RETAINS THE RIGHT TO EQUITABLE SERVICES UNDER PROPORTIONATE
14 SHARE FUNDING PURSUANT TO 34 CODE OF FEDERAL REGULATIONS SECTIONS 300.130
15 THROUGH 300.144.

16 E. THE PARENTS OF A PUPIL WHO RESIDES IN AN UNORGANIZED TERRITORY,
17 HAS BEEN FOUND TO BE ELIGIBLE FOR SPECIAL EDUCATION OR RELATED SERVICES
18 UNDER PART B OF THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT AND EITHER
19 IS PARENTALLY PLACED IN A PRIVATE SCHOOL OR ATTENDS A HOMESCHOOL MAY
20 CONTACT ANY ONE ADJOINING SCHOOL DISTRICT TO REQUEST:

21 1. AN EVALUATION PURSUANT TO 20 UNITED STATES CODE SECTION
22 1412(a)(3)(A).

23 2. A MEETING TO DISCUSS EQUITABLE SERVICES AND THE DEVELOPMENT OF A
24 SERVICE PLAN PURSUANT TO 34 CODE OF FEDERAL REGULATIONS SECTIONS 300.130
25 THROUGH 300.144.

26 F. THE DEPARTMENT SHALL:

27 1. INVESTIGATE ANY SUBSTANTIATED CLAIMS OR COMPLAINTS THAT THE
28 DEPARTMENT RECEIVES THAT ALLEGE THAT A PERSON IS VIOLATING THIS SECTION.

29 2. ANNUALLY COMPILE A REPORT REGARDING INVESTIGATIONS AND ANY
30 CORRECTIVE ACTIONS TAKEN IN THE IMMEDIATELY PRECEDING YEAR AND POST THE
31 REPORT ON THE DEPARTMENT'S WEBSITE.

32 G. FOR THE PURPOSES OF THIS SECTION:

33 1. "CHILD FIND ACTIVITIES" MEANS STATE OBLIGATIONS PURSUANT TO 20
34 UNITED STATES CODE SECTION 1412(a)(3), THE FEDERAL REGULATIONS ISSUED
35 PURSUANT TO THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT AND THE RULES
36 ADOPTED BY THE STATE BOARD OF EDUCATION RELATING TO THE IDENTIFICATION AND
37 REFERRAL OF CHILDREN WITH DISABILITIES BY PUBLIC SCHOOLS.

38 2. "FREE APPROPRIATE PUBLIC EDUCATION" HAS THE SAME MEANING
39 PRESCRIBED IN 20 UNITED STATES CODE SECTION 1401.

40 3. "FULL AND INDIVIDUAL INITIAL EVALUATION" MEANS AN EVALUATION
41 CONDUCTED PURSUANT TO SECTION 15-766.

42 4. "HOMESCHOOL" HAS THE SAME MEANING PRESCRIBED IN SECTION 15-802.

43 5. "UNORGANIZED TERRITORY" HAS THE SAME MEANING PRESCRIBED IN
44 SECTION 15-825.

45 6. "RELATED SERVICES" HAS THE SAME MEANING PRESCRIBED IN 20 UNITED
46 STATES CODE SECTION 1401.

1 7. "SPECIAL EDUCATION" HAS THE SAME MEANING PRESCRIBED IN 20 UNITED
2 STATES CODE SECTION 1401.

3 Sec. 2. Section 15-816, Arizona Revised Statutes, is amended to
4 read:

5 15-816. Definitions

6 In this article, unless the context otherwise requires:

7 1. "Nonresident pupil" means a pupil who resides in this state and
8 who is enrolled in or is seeking enrollment in a school district other
9 than the school district in which the pupil resides.

10 2. "Open enrollment" means a policy that is adopted and implemented
11 by a school district governing board to allow resident transfer pupils to
12 enroll in any school within the school district, to allow resident pupils
13 to enroll in any school located within other school districts in this
14 state and to allow nonresident pupils to enroll in any school within the
15 district pursuant to section 15-816.01.

16 3. "Resident pupil" means a pupil WHO MEETS ANY OF THE FOLLOWING:

17 (a) Whose residence is within the attendance area of a school.

18 (b) WHO RESIDES IN AN UNORGANIZED TERRITORY AS DEFINED IN SECTION
19 15-825 AND WHOSE RESIDENCE ADJOINS A BOUNDARY OF THE SCHOOL DISTRICT.

20 (c) WHO RESIDES IN AN UNORGANIZED TERRITORY AS DEFINED IN SECTION
21 15-825 AND WHOSE RESIDENCE IS LOCATED ON TRIBAL LAND.

22 (d) WHO IS PLACED AS DESCRIBED IN SECTION 15-825, SUBSECTION B.

23 4. "Resident school" means a school that is within the designated
24 attendance area in which a pupil resides.

25 5. "Resident transfer pupil" means a resident pupil who is enrolled
26 in or seeking enrollment in a school that is within the school district
27 but outside the attendance area of the pupil's residence.

28 Sec. 3. Section 15-823.01, Arizona Revised Statutes, is amended to
29 read:

30 15-823.01. Admission of nonresident children; services or
31 accommodations for children with disabilities;
32 active military duty; posting requirement;
33 definitions

34 A. Notwithstanding any other law, a ~~pupit~~ CHILD complies with the
35 residency requirements for school attendance in a local education agency
36 OR FOR SERVICES OR ACCOMMODATIONS if the parent of the ~~pupit~~ CHILD is
37 transferred to or is pending transfer to a military installation within
38 this state while on active military duty pursuant to an official military
39 order.

40 B. A local education agency shall accept an application for
41 enrollment and course registration by ~~electronic~~ ANY means, INCLUDING BY
42 ELECTRONIC MEANS OR A REMOTE APPLICATION, for a pupil who meets the
43 requirements prescribed in subsection A of this section, including
44 enrollment in a specific school or program within the local education
45 agency.

46 C. The parent of a ~~pupit~~ CHILD who meets the requirement prescribed
47 in subsection A of this section shall provide proof of ~~residence~~ RESIDENCY

1 to the local education agency within ten days after the arrival date
2 provided on official documentation. The parent may use the address of any
3 of the following as proof of ~~residence~~ RESIDENCY for the purposes of this
4 subsection:

5 1. A temporary on-base billeting facility.

6 2. TEMPORARY OFF-BASE LODGING.

7 ~~2-~~ 3. A purchased or leased home or apartment.

8 ~~3-~~ 4. Any federal government housing or off-base military housing,
9 including off-base military housing that may be provided through a
10 public-private venture.

11 5. ANY OTHER TEMPORARY HOUSING.

12 D. IF A SCHOOL DISTRICT IS NOTIFIED THAT A CHILD WHO MEETS THE
13 REQUIREMENT PRESCRIBED IN SUBSECTION A OF THIS SECTION IS RECEIVING OR
14 MIGHT BE ELIGIBLE TO RECEIVE SERVICES OR ACCOMMODATIONS, THE SCHOOL
15 DISTRICT SHALL:

16 1. PROMPTLY COORDINATE WITH THE CHILD'S PARENTS AND THE CHILD'S
17 PREVIOUS SCHOOL, IF ANY, PURSUANT TO SECTION 15-1911 TO ENSURE THE TIMELY
18 EXCHANGE OF RECORDS AND TO REDUCE ANY DELAYS IN THE CHILD RECEIVING
19 COMPARABLE SERVICES OR ACCOMMODATIONS THROUGH THE SCHOOL DISTRICT OR
20 DELAYS IN THE IMPLEMENTATION OF AN INDIVIDUALIZED FAMILY SERVICE PLAN,
21 INDIVIDUALIZED EDUCATION PROGRAM OR SECTION 504 PLAN AS DEFINED IN SECTION
22 15-731.

23 2. ACCEPT UNOFFICIAL RECORDS THAT ARE PROVIDED BY THE CHILD'S
24 PARENT, PENDING VALIDATION BY THE OFFICIAL RECORDS, PURSUANT TO SECTION
25 15-1911, ARTICLE IV, SUBSECTION A.

26 3. ON ENROLLMENT OF THE CHILD PURSUANT TO SUBSECTION B OF THIS
27 SECTION:

28 (a) PROVIDE THE CHILD WITH SERVICES OR ACCOMMODATIONS THAT ARE
29 COMPARABLE TO THE SERVICES OR ACCOMMODATIONS THAT ARE DESCRIBED IN THE
30 CHILD'S PREVIOUSLY APPROVED INDIVIDUALIZED EDUCATION PROGRAM OR SECTION
31 504 PLAN AS DEFINED IN SECTION 15-731, IN CONSULTATION WITH THE CHILD'S
32 PARENTS, UNTIL THE SCHOOL DISTRICT CONDUCTS AN ASSESSMENT OR DEVELOPS A
33 NEW INDIVIDUALIZED EDUCATION PROGRAM, IF APPROPRIATE.

34 (b) EITHER ADOPT AND IMPLEMENT THE CHILD'S PREVIOUSLY APPROVED
35 INDIVIDUALIZED EDUCATION PROGRAM OR DEVELOP, ADOPT AND IMPLEMENT A NEW
36 INDIVIDUALIZED EDUCATION PROGRAM FOR THE CHILD NOT LATER THAN THIRTY
37 CALENDAR DAYS AFTER THE CHILD ENROLLS IN THE SCHOOL DISTRICT.

38 E. THE DEPARTMENT OF EDUCATION SHALL POST INFORMATION ON THE
39 REQUIREMENTS OF THIS SECTION, INCLUDING REQUIREMENTS RELATING TO
40 ELIGIBILITY AND REQUIRED DOCUMENTATION, ON THE DEPARTMENT'S WEBSITE.

41 ~~D-~~ F. For the purposes of this section:

42 1. "Active military duty" means full-time military duty status in
43 the active uniformed service of the United States, including members of
44 the national guard and the state military reserve on active duty orders.

45 2. "Military installation" means a base, camp, post, station, yard,
46 center, homeport facility for any ship or other installation under the

1 jurisdiction of the United States department of defense or the United
2 States coast guard.

3 3. "SERVICES OR ACCOMMODATIONS" MEANS ANY SERVICES OR
4 ACCOMMODATIONS THAT ARE PROVIDED THROUGH A LOCAL EDUCATION AGENCY PURSUANT
5 TO THE INDIVIDUALS WITH DISABILITIES EDUCATION ACT (P.L. 91-260; 84 STAT.
6 175; 20 UNITED STATES CODE SECTIONS 1400 THROUGH 1482), SECTION 504 OF THE
7 REHABILITATION ACT OF 1973 (P.L. 93-112; 87 STAT. 355; 29 UNITED STATES
8 CODE SECTION 794) OR TITLE II OF THE AMERICANS WITH DISABILITIES ACT OF
9 1990 (P.L. 101-336; 104 STAT. 327; 42 UNITED STATES CODE SECTIONS 12131
10 THROUGH 12165).

11 Sec. 4. Section 15-824, Arizona Revised Statutes, is amended to
12 read:

13 15-824. Admission of pupils of other school districts;
14 homeless children; tuition charges; definitions

15 A. The governing board of a school district shall admit pupils from
16 another school district or area as follows:

17 1. On the presentation of a certificate of educational convenience
18 issued by the county school superintendent pursuant to section 15-825.

19 2. For three hundred fifty or fewer pupils, to a high school
20 without the presentation of a certificate of educational convenience, if
21 the pupil is a resident of a common school district within this state that
22 is not within a high school district and that does not offer instruction
23 in the pupil's grade. The three hundred fifty or fewer pupil limitation
24 prescribed in this paragraph does not apply to a small isolated school
25 district as defined in section 15-901. The school membership of such
26 pupils is deemed, for the purposes of determining student count and
27 providing a free and appropriate public education pursuant to the
28 individuals with disabilities education act (20 United States Code
29 chapter 33) and for apportionment of state aid, to be enrollment in the
30 school district of the pupil's attendance.

31 3. To a high school without the presentation of a certificate of
32 educational convenience if the pupil is a resident of a transporting
33 school district that does not offer instruction in the pupil's grade.
34 Tuition shall be charged as prescribed in subsection E of this section for
35 each pupil who is admitted pursuant to this paragraph. For the purposes
36 of determining student count and for apportionment of state aid, the
37 school membership of these pupils is deemed to be enrollment in the school
38 district of the pupil's residence.

39 B. The residence of the person having legal custody of the pupil is
40 considered the residence of the pupil, except as provided in subsection C
41 of this section and in section 15-825, ~~subsection~~ SUBSECTIONS B AND C.

42 C. The current residence of a homeless pupil who does not reside
43 with the person having legal custody of the pupil is considered to be the
44 residence of the homeless pupil if the person having legal custody of the
45 pupil is a resident of the United States. For the purposes of this
46 subsection, "homeless pupil" means a pupil who has a primary residence
47 that is:

1 1. A supervised publicly or privately operated shelter designed to
2 provide temporary living accommodations.

3 2. An institution that provides a temporary residence for
4 individuals intended to be institutionalized.

5 3. A public or private place not designed for, or ordinarily used
6 as, a regular sleeping accommodation for human beings.

7 D. The school enrollment of a pupil who is a resident of this state
8 or who is admitted to a school district under section 15-823, subsection
9 B, C, E, F or H is deemed, for the purpose of determining student count
10 and for apportionment of state aid, to be enrollment in the school
11 district of actual attendance, except as provided in section 15-825,
12 subsection A, paragraph 1 and subsection A, paragraph 3 of this section
13 and except for pupils for whom the superintendent of public instruction is
14 charged tuition pursuant to section 15-825, subsections B, C and ~~D~~ G and
15 section 15-976 or for whom another school district is charged tuition as
16 provided in subsections E and G of this section.

17 E. If tuition is required to be charged for pupils attending school
18 in a school district other than that of their residence, the tuition shall
19 be determined and paid in the following manner:

20 1. The number of high school pupils for which tuition may be
21 charged to a transporting school district is equal to the average daily
22 membership in the district of attendance from the transporting school
23 district for the prior fiscal year. This number may be adjusted if the
24 transporting school district increases its revenue control limit and
25 district support level.

26 2. The tuition for pupils attending school in a school district
27 other than that of their residence, except pupils provided for by section
28 15-825, subsections B, C and ~~D~~ G and any pupils included in the
29 definition of child with a disability in section 15-761, shall not exceed
30 the cost per student count of the school district attended, as determined
31 for the current school year. Tuition for pupils included in the
32 definition of child with a disability in section 15-761 shall not exceed
33 the actual cost of the school attended for each pupil as determined for
34 the current year. The school district of attendance shall not include in
35 the cost per student count a charge for transportation if no
36 transportation is provided, and the charge for transportation shall not
37 exceed the actual costs of providing transportation for the pupils served,
38 as prescribed in the uniform system of financial records. The school
39 district of attendance shall provide the school district of residence with
40 the final tuition charge for the current year and with an estimate of the
41 budget year's tuition charge by May 1 of the current year. The school
42 district of residence shall pay at least one-fourth of the total amount of
43 the estimated tuition by September 30, December 31 and March 31, and it
44 shall pay the remaining amount it owes after adjustments are made by
45 June 30.

46 3. Notwithstanding paragraph 2 of this subsection and subsection G
47 of this section, if two school districts enter into a voluntary agreement

1 for the payment of tuition, the agreement shall specify the method for
2 computing the tuition amount and the timing of the payments. The
3 agreement shall not be longer than five consecutive years. If two school
4 districts enter into an agreement and choose to renew the agreement, each
5 renewal shall not be longer than five consecutive years. The agreement
6 shall specify that a parent or legal guardian of a pupil affected by a
7 tuition agreement entered pursuant to this section or section 15-816.01
8 may choose not to send the pupil or pupils to a school district or school
9 that is a party to the agreement.

10 4. Tuition of pupils as provided in section 15-825, subsection ~~F~~ G
11 shall not exceed the excess costs for group B children with disabilities
12 minus the amount generated by the equalization base as determined in
13 section 15-971, subsection A for these pupils. A school district may
14 submit to the superintendent of public instruction a record of actual
15 excess costs to educate a group B child with a disability if the costs are
16 higher than the calculated excess costs or if a pupil has been placed in a
17 private school for special education services. The superintendent shall
18 determine if the additional costs will be paid, and if the costs are paid,
19 whether the additional costs will be paid by the state or the resident
20 district.

21 5. The amount received representing contributions to capital outlay
22 as provided in subsection G, paragraph 1, subdivision (b) of this section
23 shall be applied to the capital outlay fund or the debt service fund of
24 the school district.

25 6. The amount received representing contributions to debt service
26 as provided in subsection G, paragraph 1, subdivision (c) of this section
27 shall be applied to the debt service fund of the school district if there
28 is one. Otherwise the amount shall be credited to the capital outlay fund
29 of the school district.

30 F. A school district may submit to the superintendent of public
31 instruction a record of actual costs paid by the school district to
32 educate a pupil who qualifies for a certificate of educational convenience
33 under section 15-825, subsection B OR C. If the actual costs for that
34 pupil exceed the costs per student count computed pursuant to subsection G
35 of this section, the superintendent of public instruction shall reimburse
36 the school district for these additional costs subject to legislative
37 appropriation.

38 G. For the purposes of this section:

39 1. "Costs per student count" means the sum of the following for the
40 common or high school portion of the school district attended, whichever
41 is applicable to the pupil involved, as prescribed in the uniform system
42 of financial records:

43 (a) The actual school district expenditures for the regular
44 education program subsection of the maintenance and operation section of
45 the budget divided by the school district's student count for the common
46 or high school portion of the school district, whichever is applicable.

1 (b) The actual school district expenditures for the capital outlay
2 section of the budget as provided in sections 15-903 and 15-905 excluding
3 expenditures for transportation equipment and buildings if no
4 transportation is provided and expenditures for the acquisition of
5 building sites, divided by the school district's student count for the
6 common or high school portion of the school district, whichever is
7 applicable.

8 (c) The actual school district expenditures for debt service
9 divided by the school district's student count for the common or high
10 school portion of the school district, whichever is applicable.

11 2. "Legal custody" means:

12 (a) Custody exercised by the natural or adoptive parents with whom
13 a pupil resides.

14 (b) Custody granted by order of a court of competent jurisdiction
15 to a person or persons with whom a pupil resides unless the primary
16 purpose for which custody was requested was to circumvent the payment of
17 tuition as provided in this section.

18 Sec. 5. Section 15-825, Arizona Revised Statutes, is amended to
19 read:

20 15-825. Certificates of educational convenience; issuance;
21 effect on enrollment records; reporting
22 requirements; posting requirements; definitions

23 A. A pupil who is precluded by distance, lack of adequate
24 transportation facilities or a parent's or guardian's employment from
25 attending a school in the school district or county of the pupil's
26 residence or who resides in unorganized territory may apply to the pupil's
27 school district of residence or, for a pupil who resides in unorganized
28 territory, the school district of attendance for a certificate of
29 educational convenience. If a pupil who resides in unorganized territory
30 does not have a school district of attendance and seeks to ~~apply for a~~
31 ~~certificate of educational convenience~~ ENROLL IN A PUBLIC SCHOOL IN THIS
32 STATE, the pupil's parent shall ~~enroll the pupil in a school pursuant to~~
33 ~~article 1.1 of this chapter and apply to the school district that operates~~
34 ~~that school for a certificate of educational convenience~~ CONTACT ANY
35 SCHOOL DISTRICT ADJOINING THE UNORGANIZED TERRITORY TO REQUEST ENROLLMENT
36 OF THE PUPIL. THE PARENT MAY REQUEST ENROLLMENT OF THE PUPIL IN AN
37 ADJOINING SCHOOL DISTRICT BY SUBMITTING ONLINE ENROLLMENT PAPERWORK TO THE
38 SCHOOL DISTRICT, BY ATTEMPTING TO ENROLL THE PUPIL IN PERSON AT A SCHOOL
39 DISTRICT OFFICE OR AT A SCHOOL THAT IS OPERATED BY THE SCHOOL DISTRICT, OR
40 BY REQUESTING ENROLLMENT ASSISTANCE IN A TELEPHONIC, ELECTRONIC OR
41 IN-PERSON COMMUNICATION WITH THE SCHOOL DISTRICT OR A SCHOOL THAT IS
42 OPERATED BY THE SCHOOL DISTRICT. A school district that receives ~~an~~
43 ~~application~~ A REQUEST FOR ENROLLMENT pursuant to this subsection shall
44 submit ~~the~~ A completed CERTIFICATE OF EDUCATIONAL CONVENIENCE application
45 FOR THE PUPIL to the county school superintendent electronically, in
46 person or by regular mail NOT LATER THAN FIVE BUSINESS DAYS AFTER
47 RECEIVING THE REQUEST. If it appears to the county school superintendent

1 that it is not feasible for the pupil to attend a school in the school
2 district or county of residence OR THAT THE PUPIL RESIDES IN UNORGANIZED
3 TERRITORY, the county school superintendent shall issue a certificate of
4 educational convenience authorizing the pupil to attend a school in an
5 adjoining school district or county, whether within or without this
6 state. If a certificate of educational convenience is issued as provided
7 in this subsection, the school enrollment of a pupil is as follows:

8 1. The school enrollment of a pupil who is precluded from attending
9 a school in this state and who must attend school in another state, when
10 certified to the county school superintendent by the official in charge of
11 the school attended, is deemed for the purpose of determining student
12 count to be enrollment in the school of the county or school district of
13 the student's residence.

14 2. The school enrollment of a pupil from unorganized territory or
15 from another school district is deemed for the purpose of determining
16 student count to be enrollment in the school district of actual
17 attendance.

18 B. The county school superintendent of any county in which a pupil
19 is placed as described in this subsection shall issue a certificate of
20 educational convenience for the pupil to attend school in the school
21 district or adjoining school district to that in which the pupil is placed
22 by ~~an~~ A STATE PLACING agency ~~of this state~~ or a state or federal court of
23 competent jurisdiction IF THE PUPIL IS PLACED in one of the following:

24 1. A state rehabilitation or corrective institution.

25 2. A foster home or child care agency or institution that is
26 licensed and supervised by the department of child safety or the
27 department of health services.

28 3. A residential facility that is operated or supported by the
29 department of economic security or the department of health services.

30 4. Under the supervision of the department of juvenile corrections,
31 a residence pursuant to the interstate compact on juveniles.
32 Notwithstanding section 41-1959, the STATE placing agency, department or
33 institution shall provide the school district of attendance with the
34 necessary information to enable the district to obtain a certificate of
35 educational convenience pursuant to this subsection.

1 C. IF A PUPIL DESCRIBED IN SUBSECTION B OF THIS SECTION SEEKS TO
2 ENROLL IN THE SCHOOL DISTRICT OR ADJOINING SCHOOL DISTRICT TO THAT IN
3 WHICH THE PUPIL IS PLACED, THE PUPIL'S PARENT SHALL CONTACT THE SCHOOL
4 DISTRICT TO REQUEST ENROLLMENT OF THE PUPIL. THE PUPIL'S PARENT MAY
5 REQUEST ENROLLMENT OF THE PUPIL IN AN ADJOINING SCHOOL DISTRICT BY
6 SUBMITTING ONLINE ENROLLMENT PAPERWORK TO THE SCHOOL DISTRICT, BY
7 ATTEMPTING TO ENROLL THE PUPIL IN PERSON AT A SCHOOL DISTRICT OFFICE OR AT
8 A SCHOOL THAT IS OPERATED BY THE SCHOOL DISTRICT, OR BY REQUESTING
9 ENROLLMENT ASSISTANCE IN A TELEPHONIC, ELECTRONIC OR IN-PERSON
10 COMMUNICATION WITH THE SCHOOL DISTRICT OR A SCHOOL THAT IS OPERATED BY THE
11 SCHOOL DISTRICT. A SCHOOL DISTRICT THAT RECEIVES A REQUEST FOR ENROLLMENT
12 PURSUANT TO THIS SUBSECTION:

13 1. SHALL SUBMIT A COMPLETED CERTIFICATE OF EDUCATIONAL CONVENIENCE
14 APPLICATION FOR THE PUPIL TO THE COUNTY SCHOOL SUPERINTENDENT
15 ELECTRONICALLY, IN PERSON OR BY REGULAR MAIL NOT LATER THAN FIVE BUSINESS
16 DAYS AFTER RECEIVING THE REQUEST AND ANY REQUIRED DOCUMENTATION.

17 2. IS RESPONSIBLE FOR ALL CHILD FIND ACTIVITIES FOR THE PUPIL.

18 3. IS RESPONSIBLE FOR PROVIDING A FREE APPROPRIATE PUBLIC EDUCATION
19 TO THE PUPIL IF THE PUPIL IS A CHILD WITH A DISABILITY AS DEFINED IN
20 SECTION 15-761.

21 D. BEFORE FISCAL YEAR 2027-2028, EACH STATE PLACING AGENCY SHALL
22 DEVELOP A FORM TO ATTEST THAT A PUPIL IS PLACED IN ONE OF THE PLACEMENTS
23 DESCRIBED IN SUBSECTION B OF THIS SECTION. ON REQUEST, A STATE PLACING
24 AGENCY SHALL COMPLETE THE FORM FOR THE PUPIL AND PROVIDE THE COMPLETED
25 FORM TO THE REQUESTING PARTY. THE REQUESTING PARTY MAY SUBMIT THE
26 COMPLETED FORM WITH A CERTIFICATE OF EDUCATIONAL CONVENIENCE APPLICATION
27 TO THE COUNTY SCHOOL SUPERINTENDENT AS EVIDENCE OF THE PUPIL'S ELIGIBILITY
28 FOR A CERTIFICATE OF EDUCATIONAL CONVENIENCE PURSUANT TO SUBSECTION B OR C
29 OF THIS SECTION.

30 E. IF A PUPIL DESCRIBED IN SUBSECTION B OF THIS SECTION IS
31 PARENTALLY PLACED IN A PRIVATE SCHOOL OR ATTENDS A HOMESCHOOL, THE PUPIL
32 RETAINS THE RIGHTS ESTABLISHED BY 20 UNITED STATES CODE SECTION 1412,
33 INCLUDING THE RIGHTS TO BE IDENTIFIED, LOCATED AND EVALUATED FOR
34 ELIGIBILITY UNDER PART B OF THE INDIVIDUALS WITH DISABILITIES EDUCATION
35 ACT, AND THE RIGHT TO EQUITABLE SERVICES UNDER PROPORTIONATE SHARE FUNDING
36 PURSUANT TO 34 CODE OF FEDERAL REGULATIONS SECTIONS 300.130 THROUGH
37 300.144. THE SCHOOL DISTRICT OR ADJOINING SCHOOL DISTRICT TO THAT IN
38 WHICH THE PUPIL IS PLACED IS RESPONSIBLE FOR IDENTIFYING, LOCATING AND
39 EVALUATING THE PUPIL AND FOR PROVIDING EQUITABLE SERVICES UNDER
40 PROPORTIONATE SHARE FUNDING TO THE PUPIL.

41 ~~E.~~ F. A pupil attending school under a certificate of educational
42 convenience issued pursuant to subsection B OR C of this section is deemed
43 for the purpose of determining student count to be enrolled in the school
44 district of attendance. The county school superintendent of any county
45 shall not issue a certificate of educational convenience as provided in
46 subsection B OR C of this section if the pupil is placed in the same
47 district of the pupil's parents' or legal guardians' residence or if the

1 pupil is placed without a court order and the pupil's parents or legal
2 guardians are not residents of this state.

3 ~~D.~~ G. If a certificate of educational convenience is issued as
4 provided in subsection B OR C of this section, or for a pupil whose parent
5 or guardian is employed and domiciled by a state institution as prescribed
6 by section 15-976, tuition may be charged as follows:

7 1. For group B children with disabilities:

8 (a) Who are from unorganized territory, whose parent or guardian is
9 employed by a state institution as prescribed by section 15-976 or who
10 have been issued a certificate of educational convenience pursuant to
11 subsection B OR C of this section, the superintendent of public
12 instruction shall reimburse the district of attendance for the excess
13 costs as provided in section 15-824, subsection E, paragraph 4.

14 (b) Who are from another school district, the school district of
15 residence shall reimburse the district of attendance for the excess costs
16 as provided in section 15-824, subsection E, paragraph 4.

17 2. For pupils who are precluded from attending a school in this
18 state and who must attend a school in another state:

19 (a) If the pupil resides in a school district in this state, the
20 district of residence shall pay the amount charged by the district of
21 attendance.

22 (b) If the pupil resides in unorganized territory, the
23 superintendent of public instruction shall pay the amount charged by the
24 district of attendance.

25 ~~F.~~ H. The county school superintendent who issues a certificate of
26 educational convenience shall notify the superintendent of public
27 instruction of the issuance of the certificate. The superintendent of
28 public instruction shall draw a warrant in favor of the school district of
29 actual attendance for the amount charged, whether for common or high
30 school attendance, as provided in section 15-824.

31 ~~F.~~ I. The total amount of state monies that may be spent in any
32 fiscal year by the superintendent of public instruction for certificates
33 of educational convenience shall not exceed the amount appropriated or
34 authorized by section 35-173 for that purpose. This section does not
35 impose a duty on an officer, agent or employee of this state to discharge
36 a responsibility or create any right in a person or group if the discharge
37 or right would require an expenditure of state monies in excess of the
38 expenditure authorized by legislative appropriation for that specific
39 purpose.

40 J. EACH COUNTY SCHOOL SUPERINTENDENT SHALL:

41 1. NOT LATER THAN FIVE BUSINESS DAYS AFTER RECEIVING A CERTIFICATE
42 OF EDUCATIONAL CONVENIENCE APPLICATION PURSUANT TO THIS SECTION, EITHER:

43 (a) ISSUE A CERTIFICATE OF EDUCATIONAL CONVENIENCE AUTHORIZING THE
44 PUPIL TO ATTEND THE SCHOOL DISTRICT THAT IS IDENTIFIED IN THE APPLICATION
45 AND NOTIFY THE SCHOOL DISTRICT AND THE PUPIL'S PARENT THAT THE CERTIFICATE
46 HAS BEEN ISSUED.

1 (b) NOTIFY IN WRITING THE SCHOOL DISTRICT THAT IS IDENTIFIED IN THE
2 APPLICATION AND THE PUPIL'S PARENT THAT THE COUNTY SCHOOL SUPERINTENDENT
3 IS NOT ISSUING A CERTIFICATE OF EDUCATIONAL CONVENIENCE FOR THE PUPIL.
4 THE NOTIFICATION REQUIRED BY THIS SUBDIVISION MUST EXPLAIN THE REASON THE
5 COUNTY SCHOOL SUPERINTENDENT IS DECLINING TO ISSUE A CERTIFICATE OF
6 EDUCATIONAL CONVENIENCE AND INSTRUCTIONS FOR CURING DEFICIENCIES IN THE
7 APPLICATION.

8 ~~G. 2.~~ On or before January 1 of each year, ~~each county school~~
9 ~~superintendent shall~~ report to the department of education the total
10 number of certificates of educational convenience that the county school
11 superintendent issued pursuant to subsection A of this section during the
12 previous calendar year and the total number of certificates of educational
13 convenience that the county school superintendent issued pursuant to
14 subsection B OR C of this section during the previous calendar year.

15 ~~H.~~ K. The department of education shall maintain the reports
16 received under subsection ~~G~~ J, PARAGRAPH 2 of this section AND SHALL POST
17 THE REPORTS ON THE DEPARTMENT'S WEBSITE.

18 L. EACH SCHOOL DISTRICT IN THIS STATE SHALL:

19 1. INCLUDE A CERTIFICATE OF EDUCATIONAL CONVENIENCE APPLICATION
20 FORM AND INSTRUCTIONS REGARDING SUPPORTING DOCUMENTATION WITH PROOF OF
21 RESIDENCY DOCUMENTATION REQUIREMENTS IN ENROLLMENT PACKETS.

22 2. POST ON THE SCHOOL DISTRICT'S WEBSITE BOTH OF THE FOLLOWING:

23 (a) THE FORM AND INSTRUCTIONS DESCRIBED IN PARAGRAPH 1 OF THIS
24 SUBSECTION.

25 (b) INSTRUCTIONS FOR PARENTS WHO ELECT TO SUBMIT THE APPLICATIONS
26 TO THE COUNTY SCHOOL SUPERINTENDENT.

27 M. ENROLLMENT IS GUARANTEED FOR ANY PUPIL FOR WHOM A CERTIFICATE OF
28 EDUCATIONAL CONVENIENCE IS ISSUED PURSUANT TO THIS SECTION AND IS NOT
29 SUBJECT TO PROGRAMMATIC CAPACITY LIMITATIONS.

30 N. THE DEPARTMENT OF EDUCATION SHALL:

31 1. DEVELOP AND ADOPT A CLEAR, WRITTEN POLICY THAT IDENTIFIES A
32 PROCESS FOR PROMPT RESOLUTION OF DISPUTES BETWEEN COUNTY SCHOOL
33 SUPERINTENDENTS, PARENTS OF PUPILS AND LOCAL EDUCATION AGENCIES, RELATING
34 TO ANY OF THE FOLLOWING:

35 (a) APPLICATIONS FOR ENROLLMENT OF PUPILS PURSUANT TO THIS SECTION.

36 (b) THE PROVISION OF SERVICES REQUIRED PURSUANT TO THIS CHAPTER AND
37 CHAPTER 7, ARTICLE 4 OF THIS TITLE.

38 (c) FUNDING FOR A PUPIL'S EDUCATION PURSUANT TO THIS SECTION.

39 (d) DENIALS OR DELAYS OF ANY OF ITEMS LISTED IN SUBDIVISION (a),
40 (b) OR (c) OF THIS PARAGRAPH.

41 2. ENSURE THAT BOTH:

42 (a) ANY DISPUTE ARISING UNDER THIS SECTION IS DECIDED NOT LATER
43 THAN TEN BUSINESS DAYS AFTER THE DISPUTE RESOLUTION PROCESS IS INITIATED.

44 (b) A PUPIL IS ENROLLED IN A LOCAL EDUCATION AGENCY AND RECEIVES
45 SERVICES PURSUANT TO THIS CHAPTER AND CHAPTER 7, ARTICLE 4 OF THIS TITLE
46 WHILE THE DISPUTE IS PENDING.

1 3. INVESTIGATE ANY SUBSTANTIATED CLAIMS OR COMPLAINTS THAT THE
2 DEPARTMENT RECEIVES THAT ALLEGE THAT A PERSON IS VIOLATING THIS SECTION OR
3 SECTION 15-768.

4 4. ANNUALLY COMPILE A REPORT REGARDING INVESTIGATIONS PURSUANT TO
5 PARAGRAPH 3 OF THIS SUBSECTION AND ANY CORRECTIVE ACTIONS TAKEN IN THE
6 IMMEDIATELY PRECEDING YEAR AND POST THE REPORT ON THE DEPARTMENT'S
7 WEBSITE.

8 0. FOR THE PURPOSES OF THIS SECTION:

9 1. "CHILD FIND" HAS THE SAME MEANING PRESCRIBED IN SECTION 15-768.

10 2. "FREE APPROPRIATE PUBLIC EDUCATION" HAS THE SAME MEANING
11 PRESCRIBED IN SECTION 15-768.

12 3. "PARENT" HAS THE SAME MEANING PRESCRIBED IN SECTION 15-761.

13 4. "STATE PLACING AGENCY" HAS THE SAME MEANING PRESCRIBED IN
14 SECTION 15-1181.

15 5. "UNORGANIZED TERRITORY" MEANS A GEOGRAPHIC AREA THAT IS NOT
16 LOCATED WITHIN THE BOUNDARIES OF ANY SCHOOL DISTRICT.

17 Sec. 6. Section 15-944, Arizona Revised Statutes, is amended to
18 read:

19 15-944. Base revenue control limit

20 A. The base revenue control limit for each school district for
21 fiscal year 1980-1981 is computed as follows:

22 1. Add the amounts in the fiscal year 1979-1980 budget effective
23 May 15, 1980 for general operating and special education.

24 2. Subtract the following budgeted revenues from the sum obtained
25 in paragraph 1 of this subsection:

26 (a) Tuition paid for attendance of nonresident pupils.

27 (b) State assistance as provided in section 15-976.

28 (c) Special education revenues as provided in section 15-825,
29 subsection ~~D~~ G and section 15-1204.

30 (d) Proceeds from the sale or lease of school property as provided
31 in section 15-1102.

32 3. Add the increase in the base support level from fiscal year
33 1979-1980 to fiscal year 1980-1981 to the difference obtained in paragraph
34 2 of this subsection.

35 B. The equalization factor for each school district is computed as
36 follows:

37 1. Divide the sum obtained in subsection A, paragraph 3 of this
38 section by the base support level for fiscal year 1980-1981.

39 2. Subtract 1.0 from the quotient obtained in paragraph 1 of this
40 subsection to obtain the equalization factor.

41 C. The revenue variation factor for each fiscal year is as follows:

42 1. For fiscal year 1981-1982, 0.80.

43 2. For fiscal year 1982-1983, 0.60.

44 3. For fiscal year 1983-1984, 0.40.

45 4. For fiscal year 1984-1985, 0.20.

1 D. The base revenue control limit for each school district during
2 the five years in which the equalization plan is in operation is computed
3 as follows:

4 1. Multiply the equalization factor by the revenue variation factor
5 for the applicable year. Beginning with fiscal year 1983-1984 if the
6 resulting product is less than negative 0.08, use negative 0.08 for
7 computation purposes as provided in paragraph 2 of this subsection.

8 2. Multiply the product obtained in paragraph 1 of this subsection
9 by the base support level for the applicable year.

10 3. Add the base support level for the applicable year to the
11 product obtained in paragraph 2 of this subsection.

12 E. For fiscal year 1985-1986 and each fiscal year thereafter, the
13 base revenue control limit equals the base support level for the same
14 fiscal year.

15 Sec. 7. Section 15-947, Arizona Revised Statutes, is amended to
16 read:

17 15-947. Revenue control limit; district support level;
18 general budget limit; unrestricted total capital
19 budget limit; district additional assistance limit

20 A. The revenue control limit for a school district is equal to the
21 sum of the base revenue control limit determined in section 15-944 and the
22 transportation revenue control limit determined in section 15-946.

23 B. The district support level for a school district is equal to the
24 sum of the base support level determined in section 15-943 and the
25 transportation support level determined in section 15-945.

26 C. The general budget limit for each school district, for each
27 fiscal year, is the sum of the following:

28 1. The maintenance and operations portion of the revenue control
29 limit for the budget year.

30 2. The maintenance and operation portion of the following amounts:

31 (a) Amounts that are fully funded by revenues other than a levy of
32 taxes on the taxable property within the school district, as listed below:

33 (i) Amounts budgeted as the budget balance carryforward as provided
34 in section 15-943.01.

35 (ii) Tuition revenues for attendance of nonresident pupils.

36 (iii) State assistance as provided in section 15-976.

37 (iv) Special education revenues as provided in section 15-825,
38 subsection ~~D~~ G and section 15-1204.

39 (v) Title VIII of the elementary and secondary education act of
40 1965 assistance determined for children with disabilities, children with
41 specific learning disabilities, children residing on Indian lands and
42 children residing within the boundaries of an accommodation school that is
43 located on a military reservation and that is classified as a heavily
44 impacted local educational agency pursuant to 20 United States Code
45 section 7703 as provided in section 15-905, subsections K and O.

46 (vi) Title VIII of the elementary and secondary education act of
47 1965 administrative costs as provided in section 15-905, subsection P.

1 (vii) State assistance for excess tuition as provided in section
2 15-825.01.

3 (viii) Transportation revenues for attendance of nonresident
4 pupils.

5 (b) Amounts approved pursuant to an override election as provided
6 in section 15-481 for the applicable fiscal year.

7 (c) Amounts authorized by the county school superintendent pursuant
8 to section 15-974, subsection B.

9 (d) Expenditures for complying with a court order of desegregation
10 as provided in section 15-910.

11 (e) Interest on registered warrants or tax anticipation notes as
12 provided in section 15-910.

13 (f) Amounts budgeted for a jointly owned and operated career and
14 technical education and vocational education center as provided in section
15 15-910.01.

16 3. The maintenance and operations portion of district additional
17 assistance for the budget year.

18 4. Any other budget item that is budgeted in the maintenance and
19 operation section of the budget and that is specifically exempt from the
20 revenue control limit or district additional assistance.

21 D. The unrestricted capital budget limit, for each school district
22 for each fiscal year, is the sum of the following:

23 1. The federal impact adjustment as determined in section 15-964
24 for the budget year.

25 2. Any other budget item that is budgeted in the capital outlay
26 section of the budget and that is specifically exempt from district
27 additional assistance.

28 3. The unrestricted capital portion of the amounts contained in
29 subsection C of this section.

30 4. The unexpended budget balance in the unrestricted capital outlay
31 fund from the previous fiscal year.

32 5. The net interest earned in the unrestricted capital outlay fund
33 from the previous fiscal year.

34 Sec. 8. Section 15-976, Arizona Revised Statutes, is amended to
35 read:

36 15-976. Assistance for school districts for children whose
37 parents are employed by certain state institutions;
38 expenditure limitation

39 A. The superintendent of public instruction shall assist school
40 districts in educating children whose parents or legal guardians are
41 employed by and domiciled at the following state institutions and
42 stations: the state hospital, the Arizona state schools for the deaf and
43 the blind, intellectual disability centers, port of entry inspection
44 stations and institutions and facilities maintained by the state
45 department of corrections. The school enrollment is deemed for the
46 purpose of determining student count to be enrollment in the school

1 district of actual attendance. The assistance shall be by payment of
2 tuition as follows:

3 1. For group B children with disabilities, as provided in section
4 15-825, subsection ~~D~~ G.

5 2. For children other than group B children with disabilities, the
6 costs per student count as prescribed in section 15-824, subsection G
7 minus the amount generated by the equalization base as determined in
8 section 15-971, subsection A for those pupils, except that the tuition for
9 any pupil shall not exceed an amount equal to ~~seven thousand dollars~~
10 \$7,000 minus the amount generated by the equalization base as determined
11 in section 15-971, subsection A.

12 B. Claims for such payments shall be made by the school districts
13 through the county school superintendent to the superintendent of public
14 instruction.

15 C. The total amount of state monies that may be spent in any fiscal
16 year by the superintendent of public instruction pursuant to subsection A
17 of this section shall not exceed the amount appropriated or authorized by
18 section 35-173 for that purpose. This section ~~shall~~ DOES not ~~be construed~~
19 ~~to~~ impose a duty on an officer, agent or employee of this state to
20 discharge a responsibility or ~~to~~ create any right in a person or group if
21 the discharge or right would require an expenditure of state monies in
22 excess of the expenditure authorized by legislative appropriation for that
23 specific purpose."

24 Amend title to conform

And, as so amended, it do pass

MATT GRESS
CHAIRMAN

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